

An Act

ENROLLED SENATE
BILL NO. 1496

By: Gollihare of the Senate

and

Bashore of the House

An Act relating to the Oklahoma State Bureau of Investigation; amending 74 O.S. 2021, Sections 150.5, 150.7, and 150.11, which relate to investigations, powers and duties of the Director of the Oklahoma State Bureau of Investigation, and evidentiary property; clarifying confidentiality provisions; stating certain records not subject to subpoena or subpoena duces tecum; authorizing disclosure of certain statistical data; authorizing Director to enter into certain agreements; authorizing Director to digitally store and dispose of certain records; authorizing Director to accept certain monies to be deposited in certain fund; authorizing certain evidence disposal; requiring certain affidavit; clarifying property sale provisions; permitting refusal to sell property under certain circumstance; updating statutory language and references; and providing an effective date.

SUBJECT: Oklahoma State Bureau of Investigation

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 74 O.S. 2021, Section 150.5, is amended to read as follows:

Section 150.5. A. 1. Oklahoma State Bureau of Investigation investigations not covered under Section 150.2 of this title shall be initiated at the request of the following persons:

- a. the Governor,
- b. the Attorney General,
- c. the Council on Judicial Complaints upon a vote by a majority of the Council,
- d. the chair of any ~~Legislative Investigating Committee~~ legislative investigating committee which has been granted subpoena powers by resolution, upon authorization by a vote of the majority of the ~~Committee~~ committee,
- e. the Director ~~of the Department~~ of Human Services, or designee, as authorized by Section 1-2-105 of Title 10A of the Oklahoma Statutes, or
- f. a district court judge as authorized by Section 1-2-103 of Title 10A of the Oklahoma Statutes.

2. Requests for investigations shall be submitted in writing and shall contain specific allegations of wrongdoing under the laws of ~~the State of Oklahoma~~ this state.

B. The Governor may initiate special background investigations with the written consent of the person who is the subject of the investigation.

C. The chair of any Senate committee which is fulfilling the statutory responsibility for approving nominations made by the Governor may, upon a vote by a majority of the committee and with the written consent of the person who is to be the subject of the investigation, initiate a special background investigation of any nominee for the Oklahoma Horse Racing Commission as established by Section 201 of Title 3A of the Oklahoma Statutes or any nominee for the ~~Board of Trustees~~ board of trustees of the Oklahoma Lottery Commission as established by Section 704 of Title 3A of the Oklahoma Statutes. The Bureau shall submit a report to the committee within thirty (30) days of the receipt of the request. Any consideration by the committee of a report from the Bureau shall be for the

exclusive use of the committee and shall be considered only in executive session.

D. 1. All records relating to any investigation being conducted by the Bureau, including any records of laboratory services provided to law enforcement agencies pursuant to paragraph 1 of subsection A of Section 150.2 of this title, shall be confidential and privileged and shall not be open to the public or to the Oklahoma State Bureau of Investigation Commission except as provided in Section 150.4 of this title; provided, however, officers and agents of the Bureau may disclose, at the discretion of the Director of the Oklahoma State Bureau of Investigation, such investigative information to:

- a. officers and agents of federal, state, county, tribal, or municipal law enforcement agencies and to ~~district attorneys, in the furtherance of criminal investigations~~ prosecutorial entities for the purpose of criminal investigations and prosecutions within their respective jurisdictions,
- b. employees of the Department of Human Services in the furtherance of child abuse investigations, and
- c. appropriate accreditation bodies for the purposes of the Bureau's obtaining or maintaining accreditation.

2. Any unauthorized disclosure of any information contained in the confidential files of the Bureau, not otherwise prepared for the purpose of statistical data as referenced in this section, shall be a misdemeanor. The person or entity authorized to initiate investigations in this section, and the Attorney General in the case of investigations initiated by the Insurance Commissioner, shall receive a report of the results of the requested investigation. The person or entity requesting the investigation may give that information only to the appropriate prosecutorial officer or agency having statutory authority in the matter if that action appears proper from the information contained in the report, and shall not reveal or give such information to any other person or agency. Violation hereof shall be deemed willful neglect of duty and shall be grounds for removal from office.

3. Investigative records of the Bureau shall not be subject to a subpoena or subpoena duces tecum in any private civil action unless, after reasonable notice to the Bureau, or any authorized governmental agency that has an interest in the information, after a hearing, wherein the party issuing the subpoena demonstrates and a court finds that the need for the record or records sought substantially outweighs the presumption of the confidentiality of such record or records and, further, upon making such a finding, a court has determined that disclosure of the record or records would not jeopardize any investigation by the Bureau or authorized governmental agency that has an interest in the information. In the event the court orders the dissemination of any record or part of a record, the court shall enter a protective order consistent herewith.

E. It shall not be a violation of this section to reveal otherwise confidential information to outside agencies or individuals who are providing interpreter services, questioned document analysis, laboratory services, or other ~~specialized~~ services that are necessary ~~in the~~ to or that may provide assistance of in Bureau investigations. Individuals or agencies receiving the confidential and investigative information or records or results of laboratory services provided to the Bureau by those agencies or individuals, shall be subject to the confidentiality provisions and requirements established in subsection D of this section.

F. It shall not be a violation of this section to reveal for training or educational purposes otherwise confidential information from records relating to any investigation previously conducted by the Bureau, including any records of laboratory services provided to law enforcement agencies pursuant to paragraph 1 of subsection A of Section 150.2 of this title, so long as ten (10) or more years have passed since the production of the information or record or such information or record relates to an investigation that is closed by way of conviction or plea of guilty or nolo contendere.

G. It shall not be a violation of this section to reveal otherwise confidential information from records relating to any investigation being conducted by the Bureau, including any records of laboratory services provided to law enforcement agencies pursuant to paragraph 1 of subsection A of Section 150.2 of this title or to the public, provided, ~~release~~ of the confidential information has

been authorized by the Director of the Bureau for the purposes of developing or obtaining further information reasonably necessary to the successful conclusion of a criminal investigation being conducted by the Bureau or authorized by the Director of the Bureau for the purpose of advising crime victims or family representatives of homicide victims regarding the status of a pending investigation or to provide a summary of a closed investigation when necessary.

H. The State Treasurer shall initiate a complete background investigation of the positions with the written consent of the persons who are the subject of the investigation pursuant to subsection I of Section 71.1 of Title 62 of the Oklahoma Statutes. The Bureau shall advise the State Treasurer and the ~~Cash Management and Investment Oversight Commission~~ Invest in Oklahoma Board in writing of the results of the investigation.

I. The Bureau may report statistical data that does not include personal information to law enforcement and the public. As authorized by the Director, the Bureau may also enter into agreements with federal, state, county, tribal, or municipal law enforcement agencies for the dissemination of otherwise confidential information from investigations or laboratory services conducted by the Bureau where the purpose of the information disseminated is in furtherance of criminal investigations and crime prevention.

SECTION 2. AMENDATORY 74 O.S. 2021, Section 150.7, is amended to read as follows:

Section 150.7. The Director of the Oklahoma State Bureau of Investigation shall have the following powers, duties, and responsibilities:

1. To appoint or dismiss a Deputy Director to assist in the administration of the Bureau;

2. To supervise the maintaining of all reports and records of the Bureau and to promulgate administrative rules concerning the destruction and retention of such records. Such records shall not be transferred to the custody or control of the Archives and Records Commission or be subject to the provisions of Section 590 of Title 21 of the Oklahoma Statutes or the Records Management Act. The Director may, pursuant to adopted and promulgated administrative

rule, order destruction of records deemed to be no longer of value to the Bureau, excluding criminalistic and investigative records which shall forever be kept and maintained. The Director may cause any or all original papers or records kept by the Bureau to be digitally scanned or imaged and stored on a computer or digital storage medium in lieu of retention of the original records or papers. However, the digitally stored records or papers shall be an accurate and complete reproduction of the original papers or records and stored in a conveniently accessible manner. Following the scanning, imaging, and digital storage of the original records or papers, the Director may authorize the disposal, archival storage, or destruction of the original records or papers;

3. To report to the Commission at each regular meeting, or as directed by the Commission, the current workload of the Bureau. Such reports shall be submitted by category of the persons or entities authorized to initiate investigations as provided for in subsection A of Section 150.5 of this title, and any other category the Commission may request which does not violate the confidentiality restrictions imposed in Sections 150.1 through ~~152.9~~ 152.12 of this title. Such reports shall contain the following information:

- a. ~~what~~ the types of investigations that are pending,
- b. ~~what~~ the new types of investigations that have been opened,
- c. ~~what~~ the types of investigations that have been closed, and
- d. ~~what~~ the criminal charges that have been filed as a result of Bureau investigations.

The reports shall not contain any information on the individual subjects of the investigation or persons questioned in connection with an investigation. These reports shall be open for public inspection;

4. To designate positions, appoint employees, and fix salaries of the Bureau, other than the salaries established by ~~subsection A~~

~~of~~ Section 150.6a of this title, and to authorize the payment of necessary certification expenses for the employees;

5. To authorize the purchase and issuance of uniforms for all law enforcement officers, criminalists, and other personnel of the Bureau as designated by the Director and to purchase and issue necessary equipment for all employees of the Bureau. All uniforms and equipment shall be used only in the performance of the official duties of the officers, criminalists, or other personnel and shall remain the property of the Bureau except as otherwise provided by law;

6. To accept gifts, bequests, devises, contributions, and grants, whether public or private, including funds from federal and state agencies, or funds from any other source for use in furthering the operations of the Bureau. All monies received by the Director pursuant to this subsection shall be deposited to the credit of the OSBI Revolving Fund;

7. To enter into local cooperative agreements with local law enforcement agencies for the purpose of appointing affiliate task force agents to assist the Bureau in the investigation of major crimes under the jurisdiction of the Bureau. Affiliate task force agents shall be employees and commissioned law enforcement officers of the local law enforcement agency entering into agreement with the Bureau and shall not be employees of the Bureau. Affiliate task force agents shall have general peace officer powers and the authority to arrest persons throughout the state while serving as an affiliate task force agent. Affiliate task force agents serve solely at the discretion and will of the Director. The Director may renew, suspend, or revoke any agreement appointing an affiliate task force agent at any time; and

~~7.~~ 8. To enter into interagency transfers with the Oklahoma Highway Patrol, the Oklahoma State Bureau of Narcotics and Dangerous Drugs Control, and the ~~Oklahoma~~ Alcoholic Beverages Beverage Laws Enforcement Commission as provided for in ~~Section 1 of this act~~ Section 11000 of this title.

SECTION 3. AMENDATORY 74 O.S. 2021, Section 150.11, is amended to read as follows:

Section 150.11. A. ~~All~~ Except as provided for in Section 1024.4 of Title 21 of the Oklahoma Statutes, all property which comes into the possession of the Oklahoma State Bureau of Investigation (OSBI), whether the same is stolen, embezzled, or otherwise, which the Bureau has held for at least one (1) year unless ~~said~~ the property is perishable, may be disposed of by order of an Oklahoma County district court if the owner or owners of ~~said~~ the property are unknown or have not claimed the same. The Director of the Oklahoma State Bureau of Investigation shall then be authorized to sell, deposit, donate, destroy, or otherwise dispose of such property or any part thereof which is no longer needed to be held as evidence or otherwise used in connection with any litigation.

B. 1. If cash or other legal tender is the subject of the action, the Director shall file a petition in the district court of Oklahoma County requesting authority to forfeit and deposit the funds. The petition shall include the following information:

- a. description of the property,
- b. approximate date that the property came into possession of the Director, and
- c. the names of the owner or owners, if known.

2. Upon the filing of the petition, notice of at least ten (10) days shall be given to each known owner by the Director of the OSBI by mailing a copy of the petition and notice of hearing to the last-known address of each owner by certified mail.

3. Notice of the hearing shall also be posted at the Oklahoma County courthouse at the regular place assigned for the posting of legal notices and in the public lobby at OSBI headquarters.

4. If no owner appears and establishes ownership to the cash or legal tender, the court shall enter an order authorizing the forfeiture of the funds to the OSBI. All monies forfeited shall be deposited into the OSBI Revolving Fund.

C. 1. For disposition of all other seized property, the Director shall file a petition in the district court of Oklahoma

County requesting authority to conduct a sale of, or otherwise dispose of, the property as provided herein. The petition shall include the following information:

- a. description of the property,
- b. approximate date that the property came into the possession of the Director, and
- c. the names of the owner or owners, if known.

2. Upon the filing of the petition, notice of at least ten (10) days shall be given to each known owner by the Director of the OSBI by mailing a copy of the petition and notice of hearing by certified mail to the last-known address of each owner. An affidavit of notice being sent shall be filed with the court by a representative of the OSBI.

3. Notice of the hearing shall also be posted at the Oklahoma County courthouse at the regular place assigned for the posting of legal notices and in the public lobby at OSBI headquarters.

4. If no owner appears and establishes ownership to the property, the court ~~shall~~ may enter an order authorizing the Director to sell the property at public auction or Internet auction, which may include online bidding, to the highest bidder after notice of at least five (5) days of the auction has been given by publication in one issue of a legal newspaper of record in Oklahoma County. If the property is offered for sale at public auction, including an Internet auction, and no bid is received that exceeds fifty percent (50%) of the fair-market value of the property, such value to be announced prior to the sale, the Director may refuse to sell the item pursuant to any bid received.

5. ~~The~~ In the event of the sale of the property, the Director shall make a return of sale, and when confirmed by the court, the order confirming the sale shall vest title of the property to the purchaser. The money received from the sale shall be deposited in the OSBI Revolving Fund.

SECTION 4. This act shall become effective November 1, 2026.

Passed the Senate the 25th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 28th day of April, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____